

“At the heart of the Open Invention Network is its powerful cross-licence”



Keith Bergelt, CEO of Open Invention Network

The Open Invention Network was set up in 2005 by IBM, Novell, Philips, Red Hat and Sony. As open source software became the driving force for free and collaborative innovation over the past decades, Linux and associated open source applications faced increased litigation attacks from those who benefitted from a patent regime. The OIN effectively plays the role of protecting those working in Linux. It is the largest patent non-aggression community—with more than 2,200 corporate participants and financial supporters such as Google, NEC and Toyota. But how exactly does it protect and support liberty for all open source adopters? **Jagmeet Singh** of *OSFY* finds the answer to that in an exclusive conversation with **Keith Bergelt**, CEO of *Open Invention Network*. Edited excerpts...

Q What does the Open Invention Network have for the open source community?

The Open Invention Network (OIN) is a collaborative enterprise that enables innovation in Linux and other open source projects by leveraging a portfolio of more than 1,200 strategic, worldwide patents and applications. That is paired with our unique, royalty-free licence agreement.

While our patent portfolio is worth a great deal - in the order of hundreds of millions of dollars - any person or company can gain access to OIN's patents for free, as long as they agree not to sue anyone in the collection of software packages that we call the 'Linux System'. A new licensee also receives royalty-free access to the Linux System patents of the 2,200 other licensees. In essence, a licensee is agreeing to